

The State and another.

3. Due to peculiar facts and circumstances of the case, brief facts of the case are being mentioned, “Muhammad Saleem (complainant) and his two companions (i.e. Waseem and Shaukat Ali) while in search of Muhammad Naeem (now deceased of the case) reached near the house of Ramzan Bhula, when they were at a distance 15/20 steps from his house, they heard reports of three fires and then saw Ramzan Bhula and two unknown persons armed with pistol coming out from said house and decamping towards Masoom Shah Phatak; complainant and his companions went inside room of said house and saw Muhammad Naeem in severe injured condition, tossing at the “Sofa”, there; they tried to uplift him but he expired there. Motive was mentioned as exchange of abuses between Muhammad Naeem and Ramzan Bhula, 4/5 days prior to the occurrence; petitioner is not nominated in the FIR; he was arrested on 02.05.2018 u/s 54 Cr.P.C. on some spy information allegedly based upon use of phone bearing SIM No. 0307-

8808724; subsequently, he was sent to judicial lock up on 03.05.2018, thereafter his identification parade was conducted under the supervision of the Magistrate and he was allegedly identified as one of the unknown companion of Ramzan Bhula; he was re-arrested in this case on 21.05.2018; after investigation sent to judicial lock-up on 01.06.2018; allegedly, he got recovered pistol.”

4. It has been noticed that petitioner is not nominated in the F.I.R.; there is no eyewitness of the occurrence; only *Waj Takkar* evidence is mentioned in the FIR; as far as identification of the petitioner during identification parade is concerned, suffice to observe that since no feature of the unknown accused was mentioned in the FIR, therefore, such identification does not constitute reasonable ground to connect petitioner with the commission of alleged offence. As mentioned above, entire case of complainant rotates around Ramzan Bhula (accused) because motive is attributed to him, place of occurrence is his house, he has been nominated in the FIR as main accused, but Investigating Officer has let off and declared him as “**Not Involved**” in the occurrence, while keeping his name in column no. 2 of the report prepared u/s 173 Cr.P.C.; as far as aforementioned SIM of mobile is concerned, admittedly, same was not registered in the name of the petitioner ; no voice transcript record has been secured by the investigation agency; therefore, evidentiary value of C.D.R. shall be determined by the trial court after recording of evidence; as far as recovery of pistol is concerned, same is corroboratory piece of evidence but when there is no direct and substantial evidence available with prosecution against petitioner, *prima-facie*, there is nothing to be corroborated, therefore, evidentiary value of the same shall also be seen after recording evidence by trial court.

5. In the aforementioned circumstances, there are no reasonable grounds available on record to connect the petitioner with the commission of alleged offence, rather his case falls in the ambit of further inquiry i.e. section 497 (2) Cr.P.C. Petitioner is behind the bar for about last one year; challan has also been submitted.

6. Therefore, in the light of what has been discussed above, instant petition filed by the petitioner for grant of post arrest bail is **allowed** and he is admitted to post-arrest bail in the case subject to his furnishing bail bonds in the sum of Rs.2,00,000/- (Rupees Two hundred thousand only) with one surety in the like amount to the satisfaction of the learned trial Court.

7. It is clarified that observations mentioned above are tentative in nature and strictly confined for the purpose of disposal of instant petition.

8. In view of peculiar circumstances of the case, learned trial court is directed to conclude trial of the case within 03-months after receipt of this order.

9. It is further clarified that if the petitioner creates hindrance/hurdle in the way of conduct of trial then complainant and state will be at liberty to move this Court for recalling of this order.

Jamshaid Ali

(Farooq Haider)
Judge

“Approved for reporting.”

(Farooq Haider)
Judge